

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Deposition of Iris Ellison

Taken September 22, 2025; designated with Ellison's December 12, 2025 opposition.

Q. Please identify yourself and explain why you called for assistance on February 3, 2025.

A. My name is Iris Ellison. Mara Ellison is my sister. That evening I called 911 because Mara was overwhelmed, had missed medication, and needed help getting through a mental-health crisis. I wanted a medical welfare check. I did not report a crime, violence, a weapon, or a threat to anyone. Mara was at Larkspur Court Apartments, 1844 Holloway Road, Building C, in Alder Creek.

Q. What did you tell the dispatcher about danger?

A. Dispatcher Lena Cho asked directly whether Mara had a weapon or had threatened herself or someone else. I said no. I also said she was upset and might not welcome strangers touching her. I asked for calm help and said I could remain available by telephone. I did not ask officers to arrest Mara or force her into a vehicle.

Q. Are you offering a medical diagnosis?

A. No. I am describing my words, my relationship with Mara, and what I personally heard and saw. I am not a clinician or police-practices expert.

Iris Ellison deposition — condition before the call

Q. What led you to believe Mara needed a welfare check rather than ordinary conversation?

A. During our 7:30 p.m. call she was crying, speaking in short bursts, and saying she could not settle her thoughts. She told me she had missed doses of prescribed medication after a pharmacy delay. She did not say she wanted to hurt herself or anyone else. She said she wanted quiet and did not want to go to a crowded emergency room. I became concerned because the call ended while she was still distressed and I lived too far away to arrive promptly.

Q. Had Mara threatened an officer before that night?

A. Not to my knowledge. I told the dispatcher that Mara could recoil if someone grabbed her without warning because touch sometimes made an anxious episode worse. That was a request for careful communication, not a prediction that she would fight. I never used the words violent, assaultive, armed, or dangerous.

Q. What was your understanding of Mara's location?

A. She had stepped from her apartment into the open breezeway outside Building C. The area had a railing, stairs, and exterior lights. I relayed that location so responders could find her. I did not say she was fleeing. She remained at the complex throughout the call and encounter as far as I could determine.

Iris Ellison deposition — the recorded 911 exchange

Q. Have you reviewed the dispatch recording marked as an exhibit?

A. Yes. The recording begins at 19:42:11 and fairly captures my side of the call. It includes my statement that Mara was experiencing a medication and mental-health crisis, my request for a welfare check, and my answer that there was no known weapon. It also records the dispatcher repeating that information before sending the call.

Q. Did the recording contain a statement that Mara had struck or grabbed anyone?

A. No. Nothing like that had happened before responders arrived, and I made no such report. The dispatcher asked whether Mara was presently with another person. I answered that she was alone in the Building C breezeway. I gave Mara's clothing description only to help responders identify her.

Q. What did you mean when you asked the dispatcher to “please go slow”?

A. I meant that rapid commands or unexpected physical contact might increase Mara's distress. I did not mean officers lacked authority to conduct a welfare check. I hoped someone would speak with her and help connect her to care. The exact words matter because the later characterization of the call as a possible safety threat does not match what I reported. My testimony about the call is limited to what the recording and my memory establish; I cannot testify about what an officer subjectively understood after dispatch.

Iris Ellison deposition — dispatch updates and travel to Larkspur Court

Q. What happened after the dispatcher said officers were being sent?

A. I stayed on the line briefly, then began driving toward Larkspur Court. The dispatcher told me at approximately 19:47 that the welfare call had been assigned. I again confirmed that Mara had not mentioned a weapon. I called Mara once, but she did not answer. I did not send her a message warning that police would arrest her because I did not expect an arrest.

Q. Did you reach the complex before the encounter ended?

A. I arrived after officers had contacted Mara but before the ambulance departed. From the parking area I could see activity near Building C, though people and the stair structure blocked parts of my view. I heard Mara crying and saw her on the breezeway floor with officers close to her. I cannot place every movement during the earlier fourteen-second interval from personal observation.

Q. Why is that limitation important?

A. Because I will not fill a gap with what I think must have happened. I can describe the call, what I saw upon arrival, Mara's condition, and what people said in my presence. The body-camera record and other witnesses address the contact before I arrived. My inability to see the pivotal moment does not prove either that Mara struck an officer or that she did not; those competing accounts must be evaluated from the evidence that actually covers them.

Iris Ellison deposition — observations on arrival

Q. Describe Mara when you first had an unobstructed view.

A. She was on the concrete breezeway with her arms being secured behind her. She appeared frightened and was breathing rapidly. I saw no object in either hand. Officer Nolan Rusk was near her torso, and Officer Priya Vega was positioned to the side. By the time I reached the lower landing, Mara was handcuffed. I did not see her try to run after that point.

Q. Did you see an injury?

A. I saw a red abrasion around one wrist and later saw two small contact marks that paramedic Mateo Cole examined. Mara complained that her shoulder hurt. I did not see a fracture or a large open wound. My description is not a substitute for the medical record.

Q. What did Mara say in your presence?

A. She said, “I pulled because he hurt my wrist,” and repeated that she had not reached for the belt. Rusk said she had twisted and moved toward his equipment. Their statements conflicted. I cannot resolve that conflict by claiming the view I lacked. I also heard Vega say that she had not had a clear look at the hands during the tight part of the encounter. I remember the meaning of that statement; the recording should control if my wording differs from the captured words.

Iris Ellison deposition — sounds and recorded timing

Q. You reviewed the body-camera recordings during discovery. What did you recognize?

A. I recognized Mara's voice and the layout at Building C. At 19:53:11 the recording contains Rusk saying “stop pulling” close in time to Mara saying “you're hurting me.” Between 19:53:08 and 19:53:22, the central view is obstructed by bodies, clothing, and movement. I can hear commands, a cry, and movement noise, but I cannot see hands reliably through that obstruction.

Q. Does Mara's cry prove precisely how she moved?

A. No. It is consistent with her account of pain, but sound alone does not show whether a hand struck a forearm or moved toward a duty belt. Nor does Rusk's command establish that his stated perception was accurate. The recording documents what was said; it does not automatically decide the disputed physical facts hidden from view.

Q. What occurs when the image clears?

A. Mara is down, the conducted-energy weapon has already been used in drive-stun mode, and the officers are moving toward handcuffing. The parties have identified a single five-second cycle from 19:53:16 through 19:53:21, with the clearer view returning at 19:53:22. I did not derive those times myself. I read them from the authenticated media timeline and use them only to locate the portion I reviewed.

Iris Ellison deposition — medical transport and contemporaneous account

Q. What occurred after Paramedic Cole arrived?

A. Cole assessed Mara near the ambulance, cleaned the wrist area, examined the two superficial contact marks, and asked about shoulder pain. Mara was transported to Alder Creek Regional Medical Center. I followed separately. She remained upset but answered questions. I did not hear her threaten Cole, the officers, or hospital staff.

Q. What did Mara tell you before transport?

A. She said Rusk grabbed her wrist, she pulled away because the grip hurt, and she then felt the conducted-energy weapon while being pushed down. She denied striking him or reaching for his belt. That statement was close in time to the encounter. I understand that repeating it here does not make me an eyewitness to the obscured movements.

Q. What injuries were documented that night?

A. The records shown to me identify a wrist abrasion, two superficial contact burns, and a shoulder strain. Imaging showed no fracture. I helped Mara fill a prescription and stayed with her after discharge. I observed soreness and limited shoulder movement for several days, but I cannot assign a medical cause beyond what the treating records state. The seriousness of the force and the legal effect of the injuries are questions outside my lay testimony.

Iris Ellison deposition — later statements and memory boundaries

Q. Did you discuss the event with Mara before giving a recorded statement?

A. Yes. We spoke at the medical center because I was supporting her. The next afternoon I gave a recorded account to Lieutenant Marcus Hale. I told him which portions I had personally seen and which details Mara had told me. I did not claim that I watched the initial wrist grasp or the entire takedown.

Q. Has your description of the 911 call changed?

A. No. I consistently said the call concerned a mental-health and medication crisis, with no known weapon and no reported threat. The recording provides the best evidence of my precise words. If a summary omits my request for a calm approach, the recording remains available to correct it.

Q. Can you say whether Rusk genuinely perceived a belt reach?

A. I cannot know what he genuinely perceived. I can say that I never warned of a weapon, that I saw no weapon when I arrived, and that the pivotal hand movements are not clear on the video I reviewed. I also can report Mara's contemporaneous denial. I cannot convert those facts into testimony about Rusk's internal state. Nor can I treat the absence of a clear image as proof of either account. My role in this record is a caller, family witness, and post-contact observer.

Iris Ellison deposition — exhibits and points of agreement

Q. Which exhibits can you identify without relying on someone else's technical analysis?

A. I identify the audio as the call I placed, photographs as showing the Building C breezeway, and medical-center photographs as fairly showing Mara's wrist and the two small contact marks that night. I recognize Mara's and my voices. I do not authenticate the police export system, calculate frame timing, or opine whether compression obscured a detail; those subjects belong to the custodian and retained specialists.

Q. Are any important points undisputed from your perspective?

A. The call sought welfare assistance, reported no weapon, and preceded the officers' contact. Mara was distressed. She was seized, subjected to one drive-stun cycle, taken to the ground, handcuffed, and medically evaluated. The parties disagree about what her hands and body did during the obstructed interval and about what force was reasonable under the circumstances.

Q. What should a reader avoid taking from your testimony?

A. A reader should not claim that I saw the hidden wrist-and-belt movements, that a cry alone proves compliance, or that a police command alone proves active aggression. The same caution applies to snippets detached from their timestamps. My evidence supplies context and limited observations; it does not resolve the disputed factual core by itself.

Iris Ellison deposition — review, correction, and certification

Q. Have you reviewed the portions of this transcript designated for the summary-judgment record?

A. Yes. I reviewed the ten sections concerning the call, my observations, the medical response, the recordings, and the limits of my knowledge. They accurately distinguish what I perceived from what Mara later told me and from timing supplied by authenticated records.

Q. Do you make any correction?

A. In an earlier interview I estimated that I reached Building C “within five minutes” of the officers. The dispatch and camera clocks provide a more reliable sequence, and I do not maintain that estimate as an exact interval. I arrived after the physical contact had begun. I also use the facility's full name, Alder Creek Regional Medical Center, rather than the shorthand “county hospital” used in conversation.

Q. Does your correction alter the disputed accounts?

A. No. It reinforces that I did not personally observe every movement between 19:53:08 and 19:53:22. I stand by my recorded report of no weapon or threat, my observations after arrival, and my description of Mara's condition. I understand that the court must view the summary-judgment evidence under the governing standard and that an appellate court may later separate a legal qualified-immunity question from disputes about what the evidence proves. I offer facts, not an opinion about either court's jurisdiction or ultimate ruling.